

	legislative policy decision. (Siry Investment, L.P. v. Farkhondehpour, 13 Cal.5th at 356-357.) The Switzer Court also noted that “while deterrence of theft was one of the goals of Senate Bill No. 1068, another purpose for the proposed legislation was expressly stated in the analysis provided by the Senate Committee on the Judiciary, under the heading ‘Purpose,’ which expressed that the bill's basic purpose was to ‘[e]stablish a civil remedy for persons who have been injured by another’s purchase, concealment, sale, or withholding of property where such person knows the property has been stolen.’ (Sen. Com. on Judiciary, Analysis of Sen. Bill No. 1068 (1972 Reg. Sess.) as amended June 26, 1972.)” (Switzer v. Wood (2019) 35 Cal.App.5th 116, 131-132.) The Court finds this cause of action is governed by the three-year statute of limitations. (See, Naftzger v. American Numismatic Society (1996) 42 Cal.App.4th 421, 433-434.) Regardless of which statute of limitations applies, Neach did not meet his initial burden to show when Pacheco knew or should have known about the allegedly improper allocation of expenses. Even if Neach met his initial burden, Pacheco raised a triable issue of material fact as to whether Neach had any involvement with the calculation of incentive compensation other than reviewing the calculation after Icona took over calculating the incentive compensation. (NMF No. 8; Pacheco Decl., ¶¶ 30 and 31.) Accordingly, the motion for summary adjudication is denied. Lastly, the Court notes Neach accurately contends Pacheco’s Opposition quotes language that does not exist, at least not in the cases that were cited.
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		(Reply, Pg. 5, fn. 3.) Pacheco shall be prepared to discuss in which published cases the quoted language may be found. If Pacheco cannot provide the citations, Pacheco shall be prepared to address how he came up with this language and the reference to these two cases. If the court decides to issue an order to show cause, a separate hearing will be set. Pacheco shall give notice.
56	<i>Off calendar</i>	
57	<i>Joel Orozco-Rivera v. Santa Ana Unified School District et al.</i>	Defendant Santa Ana Unified School District's ("Defendant SAUSD") motion for summary judgment is granted. Defendant SAUSD moves for summary judgment on Plaintiff Joel Orozco-Rivera's ("Plaintiff") complaint. Defendant SAUSD contends it is immune from liability under Education Code section 44808. (ROA 100 [Not. of Mot. at p. 2].) <i>Legal Standard</i> "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (Id. at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be